

February 24, 2026

Senator Ben Albritton
President, Florida Senate
409 The Capitol
404 South Monroe Street
Tallahassee, FL 32399

Senator Jason Brodeur
President Pro Tempore, Florida Senate
416 Senate Building
404 South Monroe Street
Tallahassee, FL 32399

Senator Jim Boyd
Majority Leader, Florida Senate
318 Senate Building
404 South Monroe Street
Tallahassee, FL 32399

Senator Lori Berman
Minority Leader, Florida Senate
228 Senate Building
404 South Monroe Street
Tallahassee, FL 32399

RE: Letter in Opposition to Florida SB 482

Dear President Albritton, President Pro Tempore Brodeur, Majority Leader Boyd, and Minority Leader Berman:

On behalf of the advertising industry, we write to oppose Florida SB 482, as revised by the committee substitute.¹ We provide this letter to offer our non-exhaustive list of concerns about this bill. SB 482's proposed prohibition on certain businesses from disclosing personal information would significantly disrupt standard advertising practices that benefit consumers and contradict the approach of the Florida *Digital Bill of Rights*. In addition, SB 482's proposed disclosure requirements for interactions between a user and bot do not clarify whether they apply to businesses that use platforms for advertising or platforms themselves. Accordingly, we ask you to decline to advance the bill as drafted out of the Senate.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,000 companies that power local economies and the commercial Internet, which accounted for nearly 20 percent of total U.S. gross domestic product ("GDP") in 2024.² By one estimate, approximately 18.1% of Florida jobs in 2024 were related to the ad-subsidized Internet, a share projected to increase to 19.3% by 2029.³ Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the Senate further on the points we discuss in this letter.

¹ Florida SB 482 (2025-2026 Session), located [here](#) (hereinafter, "SB 482").

² S&P Global, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY, 2024-2029 at 4 (Aug. 2025), located at https://theadcoalition.com/wp-content/uploads/2025/08/TAC_SP-Global-Final-Report_August-2025.pdf.

³ *Id.* at 15-16.

I. SB 482’s prohibitions would impact a broad swath of Florida companies.

SB 482 would prohibit artificial intelligence (“AI”) technology companies from selling or disclosing personal information unless it is deidentified.⁴ This sweeping ban on sales and disclosures of personal information would diverge sharply from Florida’s existing privacy law, the Florida *Digital Bill of Rights*, which expressly allows the sale or disclosure of personal data subject to a consumer’s right to opt out of the sale or processing of personal data for targeted advertising or other purposes.⁵

SB 482 would define “[AI] technology company” broadly, covering both developers and deployers of AI technology. The definition includes a business that produces and develops artificial intelligence products, collects data for use in AI products, or implements AI technology, which could encompass many businesses not typically thought of as “AI companies” that collect data that may be used in AI-driven products.⁶ While SB 482 allows sharing of “deidentified data,” common identifiers such as cookie IDs and device identifiers may not qualify for this narrow exception, creating potential limitations on routine advertising use cases if a business is deemed an AI technology company.

SB 482 also does not define “personal information,” leaving unclear whether inferred traits about audiences, tied to device identifiers, could be covered (e.g., audiences of vacation travelers or amusement park enthusiasts). As a result, compliance obligations for businesses engaged in routine programmatic advertising would become unpredictable if SB 482 becomes law. We respectfully request that the Senate update SB 482 so it is aligned with the Florida *Digital Bill of Rights*, allowing “sales” of personal information such as pseudonymous and device identifiers subject to a consumer opt-out right, so that disclosures of cookie IDs, device identifiers, associated inferences, and similar types of data are not flatly banned. Without the ability to disclose these data types for advertising purposes, Florida businesses will have a more difficult time, and face higher costs, reaching individuals with relevant marketing, and Floridians will not be alerted to products and services they desire.

II. SB 482’s proposed “bot” disclosure requirements are unclear.

SB 482 would explicitly require an “operator” to, “at the beginning of an interaction between a user and a bot, and at least once every hour during the interaction... display a pop-up message notifying users that they are not engaging in dialogue with a human counterpart.”⁷ The bill would define “operator” as “a person who owns, operates, or otherwise makes available a bot to individuals in [Florida].”⁸ The bill does not clarify whether an advertiser who creates an account on a platform or the platform itself would be required to make the required disclosures. Nor does it explain how responsibility would be allocated where multiple entities are involved in developing, deploying, or hosting a bot, or how compliance would be assessed in practice. As

⁴ SB 482 § 7, 502.9986(1).

⁵ Fla. Stat. § 501.705(e).

⁶ SB 482 § 7, 502.9983(3).

⁷ SB 482 § 7, 502.9985(1).

⁸ SB 482 § 5, 502.9983(11).

drafted, the term “operator” is sufficiently ambiguous that it could sweep in a wide range of actors without clear notice of their obligations.

Given that the Florida legislature is set to adjourn in less than a month, these and other meaningful questions about scope, enforcement, and practical implementation of the bot disclosure requirements warrant further study and deliberation. The Senate should take steps to update the requirement to clarify that it does not apply to advertisers who create bot accounts on platforms for advertising purposes or decline to advance SB 482 at this time and instead allow for additional consideration to ensure the bill’s requirements are clear, workable, and appropriately tailored.

* * *

We respectfully ask the Senate not to pass SB 482, as its provisions would negatively affect both businesses and consumers alike. SB 482 is overly ambiguous and expansive, lacks clarity regarding the entities to which its bot disclosure requirements would apply, and could broadly restrict routine disclosures of pseudonymous data by businesses not traditionally considered AI companies in ways that contravene the Florida *Digital Rights Act*.

Thank you in advance for your consideration of this letter.

Sincerely,

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CC: Members of the Florida Senate

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